

M/s Brijesh Extention Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 16 November 2019 · WRIT - C No. 37203 of 2019 · **Writ disposed of; petitioners relegated to Clause 6.1 of the U.P. Electricity Supply Code, 2005, with a 40-day bar on coercive action.**

HEADNOTE

A writ seeking quashing of a Dakshinanchal Vidyut Vitran Nigam Ltd. demand notice dated 14 June 2019 and permission to pay the demanded amount in installments was disposed of on the admitted availability of an alternative remedy under Clause 6.1 of the U.P. Electricity Supply Code, 2005. The Division Bench granted liberty to apply under Clause 6.1 within ten days, directed consideration in accordance with law within thirty days thereafter, and stayed coercive action for forty days or until that authority passed orders.

FACTUAL SUMMARY

M/s Brijesh Extention Pvt. Ltd. and another challenged a notice dated 14 June 2019 issued by Dakshinanchal Vidyut Vitran Nigam Ltd., seeking to have it quashed and to be allowed to pay the demanded sum in easy installments, including under an office order dated 10 July 2019. The distribution company's counsel submitted that grievances of that kind could be ventilated under Clause 6.1 of the U.P. Electricity Supply Code, 2005. The petitioners did not dispute the availability of that remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.1

alternative-remedy

HOLDING

Where a consumer seeks certiorari against a licensee's demand notice and mandamus to pay the demanded amount in installments, and the licensee points to Clause 6.1 of the U.P. Electricity Supply Code, 2005 as the alternative remedy for ventilating those grievances, and the consumer does not dispute that forum, the writ is disposed of with liberty to apply under Clause 6.1. An application filed within the time fixed by the Court is to be considered and decided in accordance with law within the further time so fixed, and coercive action may be stayed in the interim. ¶ 3-5

FLAG The Court cited Clause 6.1 as the alternative grievance forum without specifying a sub-clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 14 JUNE 2019

The prayer to quash the notice was not decided on merits. ¶ 2

NOT DECIDED — ENTITLEMENT TO DEPOSIT THE DEMANDED AMOUNT IN EASY INSTALLMENTS, INCLUDING UNDER THE OFFICE ORDER DATED 10 JULY 2019

Both installment prayers were left to the Clause 6.1 authority. ¶ 2